

SERVICE AGREEMENT

Website Design, Development, Hosting & Maintenance Services

This Website Development, Hosting & Maintenance Service Agreement (“Agreement”) is made and entered into on this 6th day of September 2026 (“Effective Date”), by and between:

EMBRACE DATA FOR OPTIMUM SOLUTIONS CENTRE LIMITED, a company duly incorporated under the laws of the Republic of Kenya, trading as **EDOS CENTRE** (“the Service Provider” or “EDOS Centre”), of P.O. Box 46627-00100, Nairobi, with offices at Marsabit Plaza, 1st Floor, Ngong Road, Nairobi, KRA PIN P052570047Z, represented herein by its Director, Walter Imamai;

AND

MAMA MARGARET UHURU HOSPITAL (“the Client”), of telephone contact 0794414425, being the owner and operator of the website www.mamamargaretuhuru.co.ke;

(each a “Party” and collectively the “Parties”)

RECITALS

A. The Client engaged the Service Provider to design, develop and deliver a custom hospital website for the Client, together with domain name registration, as billed under Invoice No. EC-329 dated 21 August 2026.

B. The Service Provider has since delivered the said website at www.mamamargaretuhuru.co.ke and continues to provide Cloud Web Hosting & Infrastructure and System SLA, Maintenance & Technical Support to the Client, as billed under Invoice No. EC-330 dated 21 August 2026.

C. The Parties now wish to record in writing the terms and conditions governing the services already delivered and paid for, the ongoing hosting and maintenance services, the warranty applicable to the delivered website, and the basis on which any Additional Features will be scoped and charged.

NOW THEREFORE, in consideration of the mutual covenants herein, the Parties agree as follows:

1. DEFINITIONS

“Website” means the website developed for the Client and hosted at www.mamamargaretuhuru.co.ke, together with its source code, design files, content

management system and associated assets delivered under this Agreement.

“Delivered Services” means the services listed in Schedule A.

“Additional Feature” means any feature, function, page, integration, redesign or scope of work requested by the Client that is not listed in Schedule A.

“Rate Card” means EDOS Centre's standard price rates in force at the time of a request, as referenced in Schedule B.

“Warranty Period” means the six (6) month period defined in Clause 5.

2. SCOPE OF SERVICES — EXISTING / DELIVERED FEATURES

2.1 The Service Provider confirms that the following have already been supplied to, and invoiced upon, the Client, as detailed in Schedule A, Part I:

- Custom Website Design & Development;
- Domain Name Registration;
- Cloud Web Hosting & Infrastructure (annual);
- System SLA, Maintenance & Technical Support (annual).

2.2 The specific pages, sections and functionality comprised within the Website Design & Development deliverable are set out in Schedule A, Part II (Website Feature Schedule). The Client confirms this list is accurate as at the Effective Date, or shall notify the Service Provider in writing of any discrepancy within fourteen (14) days of signing this Agreement, failing which Schedule A, Part II shall be deemed accurate and conclusive as the record of existing features.

2.3 Nothing in this Agreement obliges the Service Provider to build, add or maintain any feature, service or functionality that is not listed in Schedule A, except as may be agreed in writing under Clause 3 below.

3. ADDITIONAL FEATURES AND CHANGE REQUESTS

3.1 Any feature, enhancement, redesign, new page, plugin or third-party integration, e-commerce or online-payment functionality, patient portal, online appointment/booking system, or any other functionality not listed in Schedule A shall constitute an “Additional Feature” and shall be charged separately, over and above the sums already paid under Schedule A.

3.2 All Additional Features shall be charged at EDOS Centre's standard rates prevailing at the time of the request, consistent with the Rate Card at Schedule B, plus applicable statutory taxes (currently VAT at 16%).

3.3 Before commencing any Additional Feature, the Service Provider shall issue the Client a written quotation specifying scope, cost and timelines. Work shall commence only upon the Client's written approval (email accepted) of the quotation and, where applicable, payment of any agreed deposit.

3.4 For the avoidance of doubt, routine hosting, SLA, maintenance and support already covered under Schedule A, Part I (c)–(d) — such as uptime monitoring, security patching, minor bug fixes

and routine backups — do not constitute Additional Features. New feature development is always an Additional Feature, whether or not the SLA/maintenance subscription is active.

4. FEES AND PAYMENT TERMS

4.1 The Client has been invoiced for, and shall settle in full, the amounts set out in Schedule A.

4.2 Payment for any Additional Feature shall be due per the terms stated on the applicable quotation/invoice, or, if unspecified, within thirty (30) days of the invoice date.

4.3 A finance charge of 1.5% per month shall apply to any overdue balance.

4.4 Any dispute regarding an invoice must be raised in writing within seven (7) days of the invoice date, failing which the invoice shall be deemed accepted.

4.5 Payments shall be made via the channels set out in Schedule C, quoting the relevant invoice number as reference.

5. WARRANTY — SIX (6) MONTHS

5.1 The Service Provider warrants the Website against defects in workmanship for a period of six (6) months from the Effective Date of this Agreement ("Warranty Period").

5.2 During the Warranty Period, the Service Provider shall, at no additional cost to the Client, correct any verified bug, broken functionality or defect in the Website that (a) existed within the delivered scope under Schedule A; and (b) is not caused by the Client, a third party, or any change made to the Website outside the Service Provider's control.

5.3 The warranty does NOT cover: (a) new features or scope changes, which are Additional Features under Clause 3; (b) issues arising from Client-made edits, or third-party plugins, themes or integrations not installed by the Service Provider; (c) content updates or content errors; (d) hosting downtime caused by a hosting provider other than EDOS Centre, domain registry issues outside the Service Provider's control, force majeure, or misuse of the Website; (e) compatibility issues arising from browser or operating system updates released after delivery, to the extent that remedying them requires new development rather than a defect fix.

5.4 Warranty support requests must be logged in writing to info@edoscentre.co.ke with sufficient detail to reproduce the defect. The Service Provider shall use reasonable efforts to acknowledge such requests within two (2) business days and to resolve verified defects within a reasonable time based on severity.

5.5 After expiry of the Warranty Period, bug fixes and support shall be covered under the Client's active SLA, Maintenance & Technical Support subscription (Schedule A, Part I(d)), subject to its annual renewal. Where that subscription has lapsed, such work shall be quoted and charged in accordance with Schedule B.

6. HOSTING, SLA, MAINTENANCE & SUPPORT (ONGOING)

6.1 The Service Provider shall continue to provide Cloud Web Hosting & Infrastructure and System SLA, Maintenance & Technical Support on an annual, renewable basis, as billed under

Schedule A, Part I (c)–(d).

6.2 Indicative response times, subject to severity, shall be: Critical (site down / security incident) — response within 24 hours; High (major function impaired) — response within 2 business days; Normal (minor issue or request) — response within 5 business days.

6.3 Hosting and SLA/Maintenance fees are payable annually in advance and shall auto-renew unless either Party gives thirty (30) days' written notice of non-renewal prior to the renewal date. Renewal rates shall be as advised by the Service Provider, consistent with its then-current Rate Card.

6.4 The Client shall provide timely access, content, approvals and information reasonably required for the Service Provider to perform the Services.

7. INTELLECTUAL PROPERTY

7.1 Upon full payment of all sums due under Schedule A, ownership of the final website design, custom code and content developed specifically for the Client shall vest in the Client, save that the Service Provider retains ownership of, and may reuse, any pre-existing tools, frameworks, libraries, templates or generic components used in the build.

7.2 The domain name mamamargaretuhuru.co.ke was registered by the Service Provider on behalf of the Client. The Client shall be recorded as, or given access to, the registrant/administrative contact, and shall be responsible for domain renewal fees going forward unless otherwise agreed in writing.

7.3 Third-party licensed components (e.g., stock imagery, fonts, plugins, CMS platforms) remain subject to their respective licence terms.

8. CONFIDENTIALITY

Each Party shall keep confidential all non-public information disclosed by the other Party in connection with this Agreement and shall not disclose it to any third party except as required by law or with the prior written consent of the disclosing Party.

9. TERM AND TERMINATION

9.1 This Agreement commences on the Effective Date and continues until terminated in accordance with this Clause.

9.2 Either Party may terminate the hosting/SLA/maintenance services on thirty (30) days' written notice, without affecting fees already accrued or the warranty obligations under Clause 5.

9.3 Either Party may terminate this Agreement immediately on written notice if the other Party commits a material breach that is not remedied within fourteen (14) days of written notice, or becomes insolvent.

10. LIMITATION OF LIABILITY

To the maximum extent permitted by law, the Service Provider's aggregate liability under or in connection with this Agreement shall not exceed the total fees paid by the Client under Schedule A in the twelve (12) months preceding the claim. Neither Party shall be liable to the other for indirect, incidental or consequential loss, including loss of profits, revenue, goodwill, or data.

11. FORCE MAJEURE

Neither Party shall be liable for any delay or failure to perform its obligations under this Agreement resulting from causes beyond its reasonable control, including power or internet outages, acts of God, government action, or failures of third-party infrastructure providers (e.g., hosting data centres, domain registries, payment gateways).

12. GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be governed by and construed in accordance with the laws of the Republic of Kenya. The Parties shall first attempt to resolve any dispute amicably through good-faith negotiation; failing resolution within thirty (30) days, either Party may refer the dispute to mediation, and thereafter to the courts of Kenya of competent jurisdiction, or to arbitration under the Arbitration Act (Cap. 49 of the Laws of Kenya) if both Parties so agree in writing.

13. ENTIRE AGREEMENT AND AMENDMENT

This Agreement, together with its Schedules and any quotations or invoices issued under it, constitutes the entire agreement between the Parties regarding its subject matter and supersedes all prior discussions, understandings or agreements, whether oral or written. No amendment shall be effective unless made in writing and signed by both Parties.

14. NOTICES

Any notice under this Agreement shall be in writing and delivered by email or hand. For the Service Provider, notices shall be sent to info@edoscentre.co.ke; for the Client, to the contact details provided on the signature page below.

SIGNATURES

IN WITNESS WHEREOF, the Parties have caused this Agreement to be executed by their duly authorised representatives on the date(s) set out below.

For and on behalf of

EDOS CENTRE

Signature: _____

Name: Walter Imamai

Title: Director

Date: _____

For and on behalf of

MAMA MARGARET UHURU HOSPITAL

Signature: _____

Name: _____

Title: _____

Date: _____

SCHEDULE A — DELIVERED SERVICES & FEES (AS INVOICED)

Part I — Billed Deliverables

Table 1 — Invoice EC-329, dated 21 August 2026 (Website build — one-off)

Description	Qty	Unit Price	Amount
Custom Website Design & Development	1	KSh 245,000	KSh 245,000
Domain Name Registration	1	KSh 5,000	KSh 5,000
Subtotal			KSh 250,000
VAT (16%)			KSh 40,000
Total (Invoice EC-329, 21 Aug 2026)			KSh 290,000

Table 2 — Invoice EC-330, dated 21 August 2026 (Hosting & Support — annual)

Description (Annual)	Months	Rate / Month	Annual Amount
Cloud Web Hosting & Infrastructure	12	KSh 4,800	KSh 57,600
System SLA, Maintenance & Technical Support	12	KSh 5,200	KSh 62,400
Subtotal			KSh 120,000
Discount (10%)			– KSh 12,000
VAT (16%)			KSh 17,280
Total (Invoice EC-330, 21 Aug 2026)			KSh 125,280

Part II — Website Feature Schedule

Subject to Clause 2.2, the following features are understood to form part of the Website Design & Development deliverable in Table 1 above, as live at www.mamamargaretuhuru.co.ke:

- Custom-designed, mobile-responsive website for Mama Margaret Uhuru Hospital;
- Home page;
- About Us / hospital profile page;
- Services / Departments page;
- Doctors / medical staff page;
- Contact Us page with hospital location and contact details;
- Photo gallery;
- Basic on-page search engine optimisation (SEO) setup;

- SSL/HTTPS-secured hosting;
- Domain name mamamargaretuhuru.co.ke registered and configured.

Any feature not listed above is an Additional Feature under Clause 3 and will be charged per Schedule B.

SCHEDULE B — RATE CARD FOR ADDITIONAL FEATURES

The following reference rates are EDOS Centre's rates as charged to the Client on the invoices referenced below, and shall serve as the basis for pricing any Additional Feature under Clause 3, subject to a written quotation reflecting the actual scope requested.

Service	Standard Rate	Reference
Custom software / website development	Quoted per scope; reference rate KSh 245,000 for the full custom hospital website build	Invoice EC-329
Domain name registration / renewal	KSh 5,000 per year	Invoice EC-329
Cloud web hosting & infrastructure	KSh 4,800 per month (KSh 57,600 per year)	Invoice EC-330
System SLA, maintenance & technical support	KSh 5,200 per month (KSh 62,400 per year)	Invoice EC-330
New feature / functionality development requested after go-live (Additional Feature)	Quoted per scope at EDOS Centre's prevailing development rate at the time of request	Clause 3

Note: All rates exclude VAT (currently 16%) unless stated otherwise. Rates are subject to periodic review by EDOS Centre and will be confirmed in writing before any Additional Feature work begins.

SCHEDULE C — PAYMENT INSTRUCTIONS

M-Pesa Paybill	600100
M-Pesa Account Number	188110
Bank	Stanbic Bank Kenya
Bank Account Number	0100018818811
Account Name	Embrace Data For Optimum Solutions Centre Limited
KRA PIN	P052570047Z
Payment Queries	info@edoscentre.co.ke